



Re: My counter offer

1 message

Tony Carbone <Founder@genesistcagios.com>
To: P.J. Thompson <peterjamesthompson101@gmail.com>

Fri, 22 May 2026 at 8:18 pm

Mr. Thompson,

Your recent communication, including your purported "Notice of Intention to Counterclaim," is noted.

Your transparent attempt to reframe documented IP misappropriation as a consumer law dispute is legally frivolous and will be treated as an admission of bad faith in the forthcoming Federal Court proceedings.

We have preserved your full digital footprint, including the threats and racial harassment directed at my Estate, all of which will be tendered as evidence of your malicious conduct.

Cease all further attempts at intimidation; the matter is now solely in the hands of the Court.

On Fri, 22 May 2026, 7:26 pm P.J. Thompson, <peterjamesthompson101@gmail.com> wrote:
NOTICE OF INTENTION TO COUNTERCLAIM & STATEMENT OF CLAIM

[To be filed] IN THE FEDERAL COURT OF AUSTRALIA.

BETWEEN:

PETER JAMES THOMPSON (ORCID: 0009-0005-8688-7507)
Proposed Counter-Claimant

– and –

TONY CARBONE (also known as Director, The T and C Estate)
Proposed Counter-Defendant

1. INTRODUCTION

The Counter-Claimant ('Thompson') publishes this counterclaim in response to the baseless legal threats and false accusations made by the Counter-Defendant ('Carbone'). Thompson has at all times acted in good faith, engaging in lawful academic peer review and protected fair dealing. Carbone has knowingly provided fabricated data, made fraudulent misrepresentations, and abused legal processes in an attempt to silence legitimate criticism and profit from Thompson's intellectual property.

2. FACTUAL BACKGROUND

2.1 In May 2026, Carbone initiated a purported 'collaboration' with Thompson, sharing a file titled H1_Scrubbed_GPS1420879098.csv (the 'Carbone Data') and a methodology summary, which he claimed to be the result of a forensic audit of LIGO/Virgo O4b strain data [22+L1-L50] .

2.2 The Carbone Data was represented to be authentic, raw, empirical strain data. However, analysis of publicly available LIGO strain data (the 'GWOSC Data') reveals that the Carbone Data is a fabrication, containing no noise, gaps, or instrumental artefacts characteristic of genuine LIGO data [22+L5-L6] .

2.3 In his unpublished paper "The Harmony Codex", Carbone claimed to have discovered a 180 Hz gravitational wave line with a signal-to-noise ratio of 606. Analysis of the authentic GWOSC Data confirms that no such line exists. The GWOSC Data shows no 180 Hz line above the noise floor.

2.4 When Thompson published a formal peer review of Carbone's unpublished work on the Zenodo platform (Record 10.5281/zenodo.20336831), Carbone responded by sending a "Formal Letter of Demand" threatening legal action and demanding the removal of the peer review and the destruction of all related materials.

3. CAUSES OF ACTION

3.1 Fraudulent Misrepresentation / Tort of Deceit

3.1.1 Carbone falsely represented that the Carbone Data was genuine empirical LIGO data.

3.1.2 Carbone made this representation with knowledge of its falsity, or with reckless indifference to its truth or falsity.

3.1.3 Carbone intended that Thompson rely on this representation to enter into a collaboration and to validate Carbone's claims.

3.1.4 Thompson relied on the representation to his detriment, expending time and resources analysing the fabricated data, which was ultimately worthless and has harmed his reputation through association.

3.1.5 This constitutes the tort of deceit.

3.2 Misleading or Deceptive Conduct (Australian Consumer Law – Schedule 2, s 18)

3.2.1 Carbone, in trade or commerce, engaged in conduct that was misleading or deceptive by representing that the Carbone Data was authentic LIGO data.

3.2.2 This conduct contravenes section 18 of the Australian Consumer Law.

3.3 Abuse of Process

3.3.1 Carbone's "Formal Letter of Demand" and his threat to commence legal proceedings constitute an abuse of process. The threats are not bona fide attempts to resolve a legal dispute but are intended to achieve a collateral purpose: to silence legitimate academic criticism and to coerce Thompson into deleting a scholarly work.

3.3.2 Carbone has engaged in an abuse of the court's processes by threatening proceedings for an improper purpose.

4. LOSS AND DAMAGE

4.1 Thompson has suffered loss and damage as a direct result of Carbone's conduct, including:

- a) wasted time and resources in analysing fabricated data;
- b) emotional distress and reputational harm caused by the false allegations of copyright infringement and defamation;
- c) legal costs incurred in responding to Carbone's threats.

5. RELIEF SOUGHT

Thompson seeks the following relief:

5.1 A declaration that Carbone's data is fabricated and that his claims of a 180 Hz gravitational wave line are false.

5.2 Damages for the tort of deceit and for misleading and deceptive conduct.

5.3 An injunction restraining Carbone from making further false or misleading representations about Thompson or his work.

5.4 An order that Carbone pay Thompson's costs of this proceeding, including any costs thrown away and any costs incurred as a result of Carbone's vexatious conduct.

5.5 Such further or other relief as the court deems appropriate.